



bp – bp Gateway

MN-95033

Phase 1 Determination

Acquisition may be put into effect

25 August 2026

1. Determination and statement of reasons

Notified acquisition	BP Australia Pty Ltd (bp) proposes to acquire the assets (equipment, stock and goodwill) comprising the business of a service station located at The Gateway Services Centre, Corner of Pacific Highway and Oxley Highway, Port Macquarie (bp Gateway) from M. & H.J. Webb Pty Ltd (Webbs Petroleum) (the Acquisition). The Acquisition also involves the assignment of the lease of bp Gateway from Webbs Petroleum, the current tenant, to bp. The land on which bp Gateway operates is, and will continue to be, owned by The Gateway (Port Macquarie) Pty Ltd.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, bp, is a global, vertically integrated fuel refiner and wholesaler. bp's downstream operations in Australia include ownership of fuel terminals, retail sale of fuel and convenience goods through bp-branded company owned and operated sites, retail sale of fuel through a limited number of bp-branded sites operated by third parties as commission agent sites, wholesale supply of fuel to bp-branded dealer owned and operated sites, wholesale supply of fuel to independent distributors or resellers, and commercial bulk fuel operations involving the direct supply of bulk fuel to commercial customers. bp Gateway is a service station in Port Macquarie which is active in the supply of fuel and convenience items to retail customers. bp Gateway is currently operated as a dealer owned and operated bp-branded site. Following the Acquisition, bp Gateway is intended to be operated by bp as a company owned and operated site. Webbs Petroleum is a fuel distributor which operates four bp-branded service stations across New South Wales, in Macksville, Tamworth and Port Macquarie.
Overlap and relationship between the Parties	Both bp and bp Gateway are engaged in the supply of fuel and convenience items to retail customers in Australia. bp Gateway operates in Port Macquarie. In the Port Macquarie area, bp does not currently have any company owned and operated sites, nor does it have any other dealer owned and operated sites. bp supplies fuel on a wholesale basis to bp Gateway.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines.

	In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following finding. • There is no horizontal overlap between bp and bp Gateway in the retail supply of fuel in the Port Macquarie area.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act